The 1987 Constitution and the Three Branches of Government

My PPG reviewer! The 1987 Constitution is the highest law of the Philippines. Any law or act that conflicts with it can be struck down.

Background

- After the 1986 EDSA People Power Revolution, President Corazon Aquino set up a Constitutional Commission to write a new charter.
- The people approved it in a nationwide plebiscite held on February 2, 1987. That is why it is called the 1987 Constitution.
- It has a Preamble and 18 articles. It replaced the Freedom Constitution, the temporary charter used right after EDSA.
- Its writers wanted to prevent another dictatorship, so it limits power in many ways.

Separation of powers

Government power is divided among three co-equal branches. Each has its own main job:

- The legislative branch makes laws.
- The executive branch carries out and enforces laws.
- The judicial branch interprets laws and settles legal disputes.

Checks and balances

Separation alone is not enough, so each branch can also limit the others. Some examples:

- The President can veto a bill passed by Congress. Congress can override that veto with a two-thirds vote of all members of each house.
- The Senate must agree to a treaty, by a two-thirds vote of all senators, before it takes effect.
- Many of the President's appointments, like cabinet secretaries, need confirmation by the Commission on Appointments.
- The House of Representatives has the sole power to start impeachment cases. The Senate tries them, and conviction needs two-thirds of all senators.
- The courts can declare a law or official act unconstitutional. This is called judicial review.
- If the President declares martial law, it can last only up to 60 days at first. Congress can revoke it, and the Supreme Court can review whether it has enough factual basis.

The legislative branch

Legislative power belongs to Congress, which is bicameral, meaning it has two chambers.

- The Senate has 24 senators elected nationwide (at large). They serve 6-year terms and cannot serve more than two terms in a row. A senator must be a natural-born Filipino, at least 35 years old on election day, able to read and write, a registered voter, and a Philippine resident for at least two years before the election.
- The House of Representatives is made up of district representatives and party-list representatives. The Constitution sets a base of not more than 250 members unless a law changes it, and laws

creating new districts have pushed it past that. Party-list members should make up 20% of the total. Representatives serve 3-year terms, with a limit of three consecutive terms, and must be at least 25 years old.

The executive branch

Executive power belongs to the President.

- The President and Vice President are elected separately by direct vote of the people. Both serve a 6-year term.
- The President cannot be re-elected at all. The Vice President cannot serve more than two terms in a row.
- Both must be natural-born citizens, registered voters, able to read and write, at least 40 years old, and residents of the Philippines for at least ten years before the election.
- The President is the commander-in-chief of the armed forces, controls all executive departments, and can grant pardons, except in impeachment cases.

The judicial branch

Judicial power belongs to the Supreme Court and the lower courts created by law.

- The Supreme Court has 15 members: one Chief Justice and fourteen Associate Justices.
- Justices are appointed by the President from a list of at least three nominees prepared by the Judicial and Bar Council for every vacancy.
- They serve until age 70 or until they become unable to perform their duties.

Constitutional commissions

Article IX creates three independent constitutional commissions:

- Civil Service Commission (CSC): handles hiring and rules for government workers.
- Commission on Elections (COMELEC): runs and enforces election laws.
- Commission on Audit (COA): checks how government money and property are used.

Bill of Rights highlights

Article III lists our basic rights against government abuse. In my own words:

- No one can lose life, liberty, or property without due process, and everyone deserves equal protection of the laws.
- Police generally need a warrant issued by a judge to search or arrest, and evidence taken illegally cannot be used in court.
- Free speech, a free press, peaceful assembly, and religious freedom are protected.
- A person under investigation has the right to stay silent and to have a lawyer.
- No one can be jailed just for failing to pay a debt.
- No one can be tried twice for the same offense, which is called double jeopardy.

Quick check

- Q: When was the 1987 Constitution ratified? A: In a plebiscite on February 2, 1987.

- Q: How many senators are there and how long is their term? A: 24 senators, each serving 6 years.
- Q: Can the President run for re-election? A: No. The President serves only one 6-year term.
- Q: Which house starts impeachment, and which house tries it? A: The House of Representatives starts it; the Senate tries it.
- Q: Name the three constitutional commissions. A: Civil Service Commission, Commission on Elections, and Commission on Audit.